

TENTATIVE RULING

Case: **Chang v. Ferrian**
 Case No. CV2026-1435

Hearing Date: **June 12, 2026** **Department Two** **1:30 p.m.**

Defendant Janet Ferrian’s demurrer to plaintiff Eugene Chang DBA SDLD Associates’ complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The three-day notice to pay rent or quit failed to state that Saturdays and Sundays and other judicial holidays were excluded from defendant’s three-day deadline to either pay rent or surrender possession of the premises. (Code Civ. Proc., § 1161, subd. (2); Complaint, ¶ 9(e), Exhibit 2.) As plaintiff did not strictly comply with this statutory requirement, they cannot maintain the unlawful detainer action against defendant. (*Kwok v. Bergren* (1982) 130 Cal.App.3d 596, 599–600.)

Defendant’s request to dismiss plaintiff’s complaint is **GRANTED**. (Code Civ. Proc., § 581, subd. (f)(1).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.